

# REGULATORY STATE AND QUASI-JUDICIAL INSTITUTIONS

POLITY 49

Source -> function -> fair decision -> appeal -> accountable independence

01

## WHY REGULATION?



Market failures: monopoly, information asymmetry, externality and systemic risk. Regulation changes the technique of State action; it does not abolish the State.

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## CLASSIFY THREE TIMES



Commission, Authority, Board or civil-court powers do not determine legal status.

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## DELEGATION + DESIGN AXES

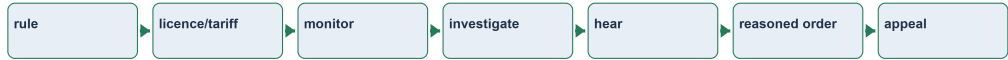


Principal-agent risk: expert information can produce drift or capture. Independence is multidimensional.

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## REGULATORY CYCLE



Combined functions improve expertise but require disclosure, recusal and functional separation where stakes demand.

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## DELEGATED LEGISLATION

Parent Act + essential  
policy

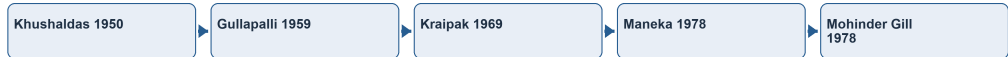
consult / publish /  
lay

ultra vires +  
constitutional review

PTC India: APTEL cannot test CERC regulation vires. Cellular Operators: statutory fit, rationality and transparent process matter.

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## NATURAL JUSTICE



Notice -> disclosed material -> hearing -> no bias -> evidence -> speaking order. Procedure is contextual, never arbitrary.

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## APPEAL != REVIEW

07

## APPEAL != REVIEW

MERITS APPEAL: fact +  
law + remedy

JUDICIAL REVIEW:  
legality +  
jurisdiction +  
fairness

Courts do not  
routinely reset tariff  
or market policy

Statutory correction and constitutional supervision are complementary.

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## SECTOR APPEAL MAP

SEBI -> SAT -> Supreme Court

TRAI -> TDSAT -> Supreme Court

CERC/SERC -> APTEL -> Supreme Court

CCI -> NCLAT -> Supreme Court

RBI has no single all-purpose appellate tribunal. Always trace the exact power and parent Act.

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## SOCIAL + REAL-ESTATE REGULATION

FSSAI: food standards

CPCB/SPCB: pollution  
regulation

NGT: environmental  
adjudication

RERA Authority/AO ->  
Tribunal -> High Court

Regulator, adjudicating officer and tribunal may share a statute yet perform different jobs.

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## CAPTURE + COORDINATION

industry data

revolving door

political/ministry  
pressure

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## CAPTURE + COORDINATION

industry data

revolving door

political/ministry  
pressure

multiple mandates

weak consumer voice

Repair through independent data, conflicts/recusal, inclusive consultation and lead-and-referral protocols.

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## DATA + ALGORITHMS

defined harm

competent law

model/data audit

intelligible  
grounds

human review

contest + appeal

A risk score may trigger inspection; it should not become unexplained conclusive liability.

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## REFORM + EXAM SPINE

transparent  
selection

staggered tenure

predictable  
funding

reasoned rules

consumer access

coherent appeals

PYQ traps: NGT != CPCB | dominance != abuse | TRAI != TDSAT | appeal != review | independence != immunity.